

25STCV09281 25STCV09281

County: los-angeles
Division: Civil Law and Motion
Department: 506
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Case Number: 25STCV09281 Hearing Date: September 22, 2026 Dept: 506

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

FOR THE
COUNTY OF LOS ANGELES - CENTRAL DISTRICT

EVERETT MALDONADO,

Plaintiff,

vs.

BMW OF NORTH AMERICA, LLC,

Defendants.

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CASE NO.: 25STCV09281

[TENTATIVE] ORDER SUSTAINING IN PART AND
OVERRULING IN PART DEFENDANT'S DEMURRER

Dept. 506

8:30 a.m.

September 22, 2026

On

March 28, 2025, Plaintiff Everett Maldonado
filed this action against Defendants BMW of North America LLC and Irvine BMW Mini.

On

October 28, 2025, the Court granted in part Defendants' motion for judgment on the
pleadings, with 30 days' leave to amend.

On December 9, 2025, Plaintiff filed a first amended complaint ("FAC").

On

February 9, 2026, Defendants filed a demurrer to the second, third, fifth, and sixth
causes of action.[1]

DISCUSSION

A

demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context, accepting the alleged facts as true. (Nolte v. Cedars-Sinai Medical Center (2015)

236 Cal.App.4th 1401, 1406.)

For

the second and third causes of action (failure to repair and failure to make literature/parts available), Plaintiff sufficiently alleges that Defendants failed to repair the vehicle to conform to the applicable warranties within 30 days. (E.g., FAC ¶¶ 61, 66-67; see Opposition at pp. 3-4.) The demurrer to the second and third causes of action is overruled.

For

the fifth cause of action (negligent repair), the Court previously denied Defendants' motion for judgment on the pleadings. The Court overrules this demurrer on the same grounds.

For

the sixth cause of action (fraudulent inducement – concealment), Plaintiff's amendments in the FAC do not remedy the problems detailed in the Court's order granting Defendants' prior motion for judgment on the pleadings.

For the reasons stated in that order and in Defendants' current demurrer, the demurrer is sustained.

CONCLUSION

The

demurrer is SUSTAINED IN PART.

The

demurrer is sustained as to the sixth cause of action. Plaintiff did not show how he can amend the FAC to remedy the deficiencies of the sixth cause of action, so no leave to amend is granted. The demurrer is otherwise overruled.

Defendants

are ordered to file their answers to the remainder of the FAC within 10 days.

Parties

who intend to submit on this tentative must send an email to the Court at SMCDEPT506@lacourt.ca.gov indicating intention to submit. If all parties in the case submit on the tentative ruling, no appearances before the Court are required unless a companion hearing (for example, a Case Management Conference) is also on calendar.

Dated this 22nd day of September 2026

Hon.

Thomas D. Long

Judge

of the Superior Court

[1] The Court

overrules Defendants' demurrer to the entire FAC on the ground that it was filed late. This is not a ground for demurrer, nor will the Court strike the FAC on this ground.